

Tentative Rulings for June 23, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506282	RUIZ VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the reasonable reduced amount of \$11,922.20 and \$718.20 in costs.

There is no dispute that Plaintiff is designated as the prevailing party in this SBA case under the Settlement Agreement and Release (SAR), which was executed on 3/27/26. (Dec.Alam ¶ 15, Ex. "E".) In fact, although suggesting a significant reduction, VW agrees attorneys' fees should be awarded in this case in a reasonable amount (e.g., \$10,000.00.)

Under Civil Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (emphasis added.)

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Plaintiff asserts that VW's counsel's hourly rates and time spent on this case are excessive. A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler*

(2000) 22 Cal.4th 1084, 1095.) The hourly rates sought by Plaintiff for the three attorneys who worked on this case vary from \$450 per hour to \$625 per hour. (Dec.Alam ¶ 16.) Aaron Fhima (11+ years' experience), the firm's principle attorney, bills at \$600 [2025]; \$625 [2026]; Gabrielle Diamse (4+ years' experience), senior associate, bills at \$525 per hour; and Nadia Alam (1+ years' experience), associate, bills at \$450 per hour.

Plaintiff's counsel, Nadia Alam, asserts hourly rates similar to those requested in this motion were approved in cases brought in Contra Costa, Los Angeles, Merced, Riverside (1), San Bernardino, San Diego County, and San Francisco trial courts. (Dec.Alam ¶¶ 37-38, Exs. "F" – "N".) The rates that were awarded in counties other than Riverside are not particularly relevant, as noted above. Based on the court's own experience, the requested hourly rates are excessive for the amount of experience and level of skill (e.g., \$450/hr. for an associate with 1 years' experience), which should be reduced to rates within the range of fee awards by Riverside courts for lemon law cases. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) VW suggests that reasonable hourly rates should be \$350 for partners, and \$300 for associates. The Court finds reasonable hourly rates should be \$500 for Fhima, and \$350 for the two associates with less than five years' experience.

In addition, one paralegal worked on the case, billing at \$220 per hour. No experience level was provided. A court may allow any expenses ordinarily billed to a client which are not included in the overhead component of the attorney's hourly rate, including paralegal fees billed separately at the market rate. (*Guinn v. Dotson* (1994) 23 Cal. App. 4th 262, 268.) While VW proposes a reduction to \$200 for paralegals, this reduction is unnecessary since Cindie Ianni only billed 1.7 hours.

Further, VW specifically challenges some of Plaintiff's counsel's billing claiming that certain entries are excessive, templated, unreasonable, padded, and unnecessary:

- *Clerical and Administrative Tasks*: Counsel billed 0.4 hour to send copies of written discovery with a letter (Dec.Phan ¶ 11, Ex. "J", Entry No. 19); 0.3 hour to communicate with client about setting a deposition (*Id.* Entry Nos. 38-39); 0.5 hour to send SAR to client, separate from time billed to review same (*Id.* Entry Nos. 74-77). VW suggests these tasks be adjusted to a reasonable secretary rate of \$100 per hour. Plaintiff persuasively argues that this work included a letter to the client regarding status; that discussing preparation for deposition is not clerical; and one hour to review the SAR is not unreasonable. No reduction is needed.
- *Paralegal Tasks*: Counsel billed to send documents to paralegal for service and also billed for service to the client (*Id.* Entry Nos. 23, 44, 48, 59); paralegal billed for finalization not service (*Id.* Entry Nos. 24, 45, 60); counsel billed for service, receipt of documents, review, and routine requests by Plaintiff (*Id.* Entry Nos. 23, 44, 48, 59). VW suggests these tasks be adjusted to a reasonable paralegal rate of \$200 per hour. Plaintiff argues this work is not paralegal work, and was reasonably incurred. No reduction is needed.

- *Templated Documents*: Counsel relied on boilerplate pleadings and templated discovery numerous entries totaling 18.0 hours, which VW suggests should be reduced by 9.5 hours. Plaintiff argues that the documents are tailored to this case, which is reasonable. It is also merely VW's opinion that the time spent was excessive. No reduction is needed.
- *Unnecessary Flat Fee for \$3,900 for Case Initiation*: VW suggests this unnecessary surcharge be stricken. Plaintiff argues that pre-litigation work is compensable. And, it is merely VW's opinion that this is a surcharge. No reduction is needed.
- *Impermissible Block Billing*: VW suggests numerous entries should be adjusted. Plaintiff argues block billing is not objectionable unless it prevents the court from determining if there are tasks that are not compensable. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1010-1011.) Plaintiff adds that this format of billing actually prevents padding as it joins together closely related tasks. No reduction is needed.
- *Unreasonable Billing for this Motion*: Counsel seeks 14 hours for this motion, which is excessive and unreasonable. VW suggests a 3.2 hour reduction. Here, the time spent is reduced to 8 hours.

As to attorneys' fees, Plaintiff requests \$18,454.00 plus anticipated work (6 hours to prepare for/travel to/attend the hearing on this motion [\$2,700]; and, 1.5 hours to prepare an opposition to a motion to tax costs [\$675].) The anticipated amounts are excessive. As to the additional work on *this* motion, a proposed reduction is needed so, that no more than a total of 8 hours should be spent on this motion. Using the adjusted hourly rate, attorneys' fees should be award in the total amount of \$11,204.00 (29.8 x \$350 per hour is \$10,430.00 [Alam and Diamse]; 0.8 at \$500 per hour is \$400 [Fhima]; 1.7 at \$220 per hour is \$374 [Cindie Ianni, paralegal].)

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated and risky case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The Court exercises discretion and decline to award an enhancement or positive multiplier.

COSTS

Plaintiff also seeks costs and expenses in the amount of \$718.20. (Dec.Alam, Ex. "C".) VW does not offer any argument against costs and expenses.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501830	PULS VS COMPU-LINK CORPORATION	DEMURRER ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant Jett Partners LP's UNOPPOSED Demurrer as to the 5th, 12th, and 13th Causes of Action is sustained without leave to amend. (On 3/24/26, court previously sustained Defendant Jett's Demurrer to the instant causes of action and granted leave to amend.)

The court takes judicial notice of Exhibits 1 through 13 as requested by JETT. These exhibits include certified copies of recorded documents—such as the Deed of Trust, Notice of Default, and Foreclosure Commissioner's Deed Upon Sale—as well as court records from the related unlawful detainer action, *Jett Partners LP v. Tina Puls*, Case Number UDMV2500748. Judicial notice of these public records and court filings is proper under Evidence Code section 452, subdivisions (d), (g), and (h).

Under California law, the failure of a responding party to serve and file points and authorities in opposition may be construed by the court as an admission that the motion is meritorious. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.

As such, as Defendant Jett asserts regarding the Fifth (Slander of Title), twelfth (Cancellation of Instruments), and thirteenth (Quiet Title) causes of action are barred by issue preclusion. JETT previously obtained a judgment for possession against Plaintiff in the unlawful detainer action (Case No. UDMV2500748). That proceeding, brought under Code of Civil Procedure section 1161a, necessarily determined that JETT “duly perfected” title to the Subject Property through a regularly conducted foreclosure sale.

Plaintiff's current claims for slander of title, cancellation of instruments, and quiet title are founded upon alleged irregularities in that same trustee's sale. Because the issue of ownership and the validity of the foreclosure were already litigated and decided in the unlawful detainer action, Plaintiff is precluded from re-litigating those issues here.

The TAC fails to state a cause of action against JETT because JETT is a bona fide purchaser for value who acquired title without notice of Plaintiff's claims. Recordation of the trustee's deed creates a conclusive presumption of validity in favor of a bona fide purchaser. The TAC admits JETT purchased the property at the foreclosure sale for \$532,000 and does not allege that JETT had notice of Plaintiff's unrecorded claims at the time of purchase.

Leave to amend is denied because there is no reasonable possibility that the defects in these causes of action can be cured. The bar of res judicata arising from the final judgment in the unlawful detainer case is a legal impediment that cannot be overcome by further pleading.